

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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VICTOR DELVALLE and FRANKIE FRANCISCO,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER
OSWALDO ESPINOZA, Shield No. 08415 and POLICE
OFFICERS JOHN AND JANE DOES NUMBERS 1-10,

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
November 27, 2019

Yours, etc.



BROWN & CHESSA LLP
MICHAEL CHESSA, ESQ.
Attorney for the Plaintiffs
26 Court Street, Suite 1406
Brooklyn, New York 11242
(718)-596-0025

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER OSWALDO ESPINOZA, Shield No.8415, 045 Precinct, 2877
Barkley Avenue, Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
VICTOR DELVALLE and FRANKIE FRANCISCO,

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
OSWALDO ESPINOZA, Shield No. 08415 and POLICE
OFFICERS JOHN AND JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiffs' VICTOR DELVALLE and FRANKIE FRANCISCO, by their attorneys, Brown & Chessa LLP, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 11, 2018, at approximately 12:49 a.m., Plaintiffs' Victor A. Delvalle and Frankie Francisco, while lawfully in the vicinity of Schley Avenue and Hutchinson River Parkway, Bronx, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the Defendant New York City police officers. Plaintiffs were then unlawfully imprisoned at the 45th Precinct and Bronx Central Booking for approximately 24 hours until Plaintiffs were arraigned in Criminal Court, charged with crimes they did not commit, and released on their own recognizance. Plaintiffs were denied the right to due process and a fair trial until the Reckless Driving and Operating a Motor Vehicle While Under the Influence of Alcohol or drug charges against Plaintiff were dismissed on August 21, 2019. Plaintiffs were deprived of their constitutional and common law rights when the individual Defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned and denied Plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff VICTOR A. DELVALLE is a resident of the state of New York.
3. Plaintiff FRANKIE FRANCISCO is a resident of the state of New York
4. POLICE OFFICER OSWALDO ESPINOZA, Shield No.8415, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
5. POLICE OFFICER OSWALDO ESPINOZA, Shield No.8415, was at all times relevant herein, assigned to the 45th Precinct.
6. POLICE OFFICER OSWALDO ESPINOZA, Shield No.8415, is being sued in his individual and official capacity.
7. New York City Police Officers John and Jane Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
8. Police Officers John and Jane Does #1-10 are being sued in their individual and official capacities.
9. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the Defendant, and/or Defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
12. The Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On August 11, 2018, at approximately 12: 49 a.m., the Plaintiffs were lawfully present in the vicinity of Schley Avenue and Hutchinson River Parkway, Bronx, New York, when the Defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested the Plaintiffs' without probable cause or legal justification.
14. At no time relevant herein did the Plaintiffs commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
15. At no point did Defendants recover any drugs, weapons, or other illegal contraband from the Plaintiffs' or from a location that was in the Plaintiffs' possession, custody or control.
16. Nevertheless, the Plaintiffs were unlawfully arrested and handcuffed by Defendant officers without legal justification or probable cause.
17. Defendant police officers transported Plaintiffs to the 45th Precinct against their will, where the Plaintiffs' were unlawfully photographed, fingerprinted and detained in a holding cell.
18. The Plaintiffs were then transported from the 45th Precinct to Central Booking.
19. The Defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.
20. Specifically, the Defendant police officers falsely stated to the District Attorney's Office that Plaintiff Victor Delvalle was driving recklessly and operating a Motor Vehicle while under the influence of alcohol or drug among other charges.
21. Additionally, the Defendant police officers falsely stated to the District Attorney's Office that Plaintiff Frankie Encarnacion was unlawfully in the possession of a weapon in the 4th degree among other charges.
22. On August 11, 2018, Plaintiffs Victor Delvalle and Frankie Francisco were arraigned in Bronx County Criminal Court, charged with crimes that the Defendant officers had no basis to alleged that they committed and were released from custody.
23. Thereafter, on August 21, 2019 all charges against Plaintiffs Victor Delvalle and Frankie Francisco were dismissed.
24. Some of the police officer Defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using

excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

25. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named Defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

26. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. The individually named police officer Defendants while acting in concert and within the scope of their authority, caused the Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of the Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
28. As a result of the aforementioned conduct of Defendants, the Plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

29. Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.
30. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine the Plaintiffs and, in fact, confined the Plaintiffs', and the Plaintiffs were conscious of the confinement. In addition, the Plaintiffs' did not consent to the confinement and the confinement was not otherwise privileged.
31. As a direct and proximate result of such acts, Defendants deprived the Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

32. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
34. As a result of the aforementioned conduct of Defendants, the Plaintiffs' sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

35. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.
36. The illegal approach, pursuit, stop, questioning and frisk employed by Defendants herein terminated the Plaintiffs freedom of movement through means intentionally applied.
37. The conduct of Defendants in stopping, frisking, and searching the Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
38. As a direct and proximate result of such acts, Defendants deprived the Plaintiffs of their rights under the laws of the State of New York.
39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
40. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
41. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to physical emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

42. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. The illegal approach, pursuit, stop and search employed by Defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.
44. Defendants lacked probable cause to search the Plaintiffs.
45. As a direct and proximate result of such acts, Defendants deprived the Plaintiffs of their rights under the laws of the State of New York.
46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
47. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
48. As a result of the aforementioned conduct of Defendants, the Plaintiffs sustained injuries, including but not limited to physical emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

49. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.
51. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

52. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.
53. In withholding/creating false evidence against the Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
54. As a result of the foregoing, the Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.
55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
56. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
57. As a result of the aforementioned conduct of Defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

58. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.
59. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to the Plaintiffs.
60. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiffs and violated the Plaintiffs' statutory and common law rights as guaranteed the Plaintiffs by the laws and Constitution of the State of New York.
61. As a direct and proximate result of such acts, Defendants deprived the Plaintiffs of their rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
63. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
64. As a result of the aforementioned conduct of Defendants, the Plaintiffs sustained permanent physical injuries, including but not limited to physical emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

65. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.
66. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
67. As a result of the aforementioned conduct of Defendants, the Plaintiffs' sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

68. The Plaintiffs' repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.
69. Defendants that did not physically touch the Plaintiffs', but were present when other officers violated Plaintiffs' Constitutional Rights, had an affirmative duty to intervene on behalf of the Plaintiffs, whose constitutional rights were being violated in their presence by other officers.
70. Defendants failed to intervene to prevent the unlawful conduct described herein.

71. As a result of the foregoing, the Plaintiffs liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.
72. As a direct and proximate result of such acts, Defendants deprived the Plaintiffs of their rights under the laws of the State of New York.
73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
74. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
75. As a result of the aforementioned conduct of Defendants, the Plaintiffs' sustained injuries, including but not limited to physical emotional and psychological injuries.

JURY DEMAND

76. The Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs Victor A. Delvalle and Frankie Francisco demand judgment against Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: Brooklyn, New York
November 27, 2019

Yours, etc.



BROWN & CHESSA LLP
MICHAEL CHESSA, ESQ.
Attorney for the Plaintiffs'
26 Court Street, Suite 1406
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(718)-596-0025

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER OSWALDO ESPINOZA, Shield No.08415, 045 Precinct,
2877 Barkley Ave, The Bronx, NY 10465

ATTORNEY'S VERIFICATION

MICHAEL CHESSA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **BROWN & CHESSA LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs do not reside in the county wherein I maintain my office.

DATED: Brooklyn, New York
November 27, 2019

A handwritten signature in black ink, appearing to read 'Michael Chessa', is written over a horizontal line.

MICHAEL CHESSA